

**SUBSTITUTE FOR
HOUSE BILL NO. 5326**

A bill to amend 2016 PA 436, entitled
"Unmanned aircraft systems act,"
(MCL 259.301 to 259.331) by adding section 8.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 **Sec. 8. (1) Subject to subsection (3), a police officer may**
2 **intercept, disable, or destroy an unmanned aircraft that is flying**
3 **in a manner that poses a risk to public safety or that is flying in**
4 **violation of federal law or Federal Aviation Administration**
5 **guidelines.**

6 **(2) A police officer who intercepts, disables, or destroys an**
7 **unmanned aircraft under subsection (1) is not liable to the owner**
8 **of the unmanned aircraft for damage to the unmanned aircraft.**

9 **(3) Subsection (1) applies only to a police officer who**



1 completes federally approved training and certification procedures
2 for exercising the authority described in subsection (1).

3 (4) This section applies only to the extent that this section
4 is not preempted by federal law.